

**TENTATIVE RULINGS
DEPARTMENT C11 - LAW AND MOTION CALENDAR**

Judge Jonathan Fish

June 15, 2026

LAW AND MOTION IS HEARD ON MONDAYS AT 1:30 P.M.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. Parties must comply with the Court's policy on the use of privately-retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#);
- Please see the Court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 5 p.m. on the preceding Friday. Do NOT call the Department for a tentative ruling if none is posted. Tentative rulings may not be posted on every case – or may be posted the morning of the hearing – due to the Court's other commitments or the nature of a particular motion. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on tentative rulings: If **all** counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5211. Please do not call the Department unless **all** parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature, if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Parties are referred to the Court's "Appearance Procedures and Information – Civil Unlimited and Complex" and "Guidelines for Remote Appearances" available on the Public Website.

#	Case Name	
1	Baker & McKenzie LLP vs. Shapiro 2025-01523850	1. Demurrer to Amended Cross-Complaint 2. Case Management Conference Continued to 10/05/2026
2	Delongchamps vs. Ford Motor Company 2025-01516107	1. Demurrer to Complaint 2. Case Management Conference Off calendar as moot. First Amended Complaint timely filed 6/2/26. Case Management Conference continued to 7/20/2026 at 9:00 AM.
3	Haines vs. ARC Investments 2024-01438343	Demurrer to Amended Complaint / Motion to Strike Portions Of Complaint Defendant ARC Investments' demurrer to the second amended complaint ("SAC") of plaintiff Cliff Haines is sustained with 20 days leave to amend. [ROA ## 123, 108] Defendant's motion to strike portions of the SAC is therefore moot. Defendant's request for judicial notice is granted. [ROA #119.] Further, on its own motion and with this notice to the parties, the court will take judicial notice of Plaintiff's motion to vacate [Orange County Superior Court case no. 2024-01413277, ROA #37] in the prior action and the court's denial. [<i>Id.</i> , ROA #47.] <i>Scott v. JPMorgan Chase Bank, N.A.</i> (2013) 214 Cal.App.4th 743, 752. Facts This is an action by a self-represented plaintiff for damages suffered by the loss of a mobile home slot and sale of the mobile home. [Complaint (ROA #1); FAC (ROA #47); SAC (ROA #108).] Int his case, Plaintiff seeks recovery for fraud, coercion, and economic duress by Defendants that fraudulently induced Plaintiff to dismiss his prior lawsuit on September19. 2024. depriving him of a fair hearing on the merits.

[SAC, ¶ 5 (bold added).]

Plaintiff alleges he was the owner of the mobile home and the lessee of the slot at 6241 Warner Ave. #120. Plaintiff purchased the mobile home at that location for \$175,000 on 4/9/22. [SAC, ¶ 15.]

Plaintiff alleges he Defendant obtained a default unlawful detainer judgment against others. Plaintiff was not named or served. Nonetheless, Defendant repeatedly told him no longer had a right to sell it. [SAC, ¶¶ 16-18.]

Previously, Plaintiff alleged that on 7/12/24, he filed a civil complaint (Case No. 30-2024-01413277) against Sea 20 Aim Mobile Home Park for wrongful eviction and interference with property rights. [FAC, ¶ 11.]

Plaintiff now alleges a number of times he obtained a buyer but Defendant would not approve the sale. And when Plaintiff was in escrow with a buyer, Defendant's counsel told him Defendant would not approve the buyer's lease application unless Plaintiff dismissed his case. [SAC, ¶¶ 19-27.] Plaintiff alleges this statement was "false, coercive, material, and made with intent to force Plaintiff to surrender litigation rights." [*Id.*, ¶ 28.]

On 9/19/24, under direct pressure and financial duress, Plaintiff signed a dismissal with prejudice. [SAC, ¶¶ 29-30.]

Despite Plaintiff complying with its demands, ARC delayed buyer approval and Plaintiff was forced to sell the mobile home as a "pull out" at the reduced price of \$46,000 rather than the \$221,000 it was worth with the slot. [*Id.*, ¶ 31.]

Plaintiff alleges that this action is intended to assert a different primary right than the one involved in Case No. 30 2024 01413277. [SAC, ¶ 33.] "The primary right at issue in this action is Plaintiff's right to be free from extrinsic fraud, coercion, and economic duress in connection with litigation and settlement decisions." [*Id.*, ¶ 35.] "This action does not seek to relitigate the issues raised in the prior case, **but instead seeks damages for Defendants' fraudulent procurement of Plaintiff's September 19, 2024 dismissal.**" [*Id.*, ¶ 37 (bold added).]

According to documents for which Defendant seeks judicial notice, on 7/12/24 Plaintiff filed a complaint alleging that Defendant was illegally blocking him from selling his property and on 9/19/24 dismissed that action with prejudice. [RJN (ROA #119), Exs. A and

B.] The caption page of the complaint listed causes of action for wrongful eviction, illegal unlawful detainer (service), and illegal seizure of property. [*Id.*, Ex. A.]

The court file in the prior action also reflects that Plaintiff move to vacate the dismissal of that action on the ground that it was induced by extrinsic fraud. [Orange County Superior Court case no. 2024 01413277 at ROA # 37.]. This motion was denied. [*Id.* at ROA # 47.] The court found that the fraud described by Plaintiff (which is the same alleged in this action) was at best intrinsic fraud:

Additionally, even assuming the purported fraudulent statements are attributed to Defendant, including that Helms would not approve the lease unless Plaintiff dropped the lawsuit, and/or that the sale would be cancelled and Plaintiff would “lose the funds” if Plaintiff did not sign the dismissal, and/or that Plaintiff’s home would be auctioned off and he would receive nothing, are intrinsic as the alleged fraud goes to the merits of Plaintiff’s claims for illegal seizure of property and his right to the home and ability to sell the home which were at issue in the Complaint.

[*Id.* at 2.]

Demurrer

Legal Standard

A demurrer can be used only to challenge defects that appear within the “four corners” of the pleading – which includes the pleading, any exhibits attached, and matters of which the court is permitted to take judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal. App. 4th 968, 994. Limited to the “four corners” as such, a pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. *Leek v. Cooper* (2011) 194 Cal. App. 4th 399, 413.

On demurrer, a complaint must be liberally construed. Code Civ. Proc. § 452; *Stevens v. Superior Court* (1999) 75 Cal. App. 4th 594, 601. All material facts properly pleaded, and reasonable inferences, must be accepted as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal. 4th 962, 966-67.

A pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. The degree of detail required depends on the extent to which the defendant in fairness needs such detail which can be conveniently provided by the plaintiff. Less particularity is required when the defendant ought to have co-extensive or superior knowledge of the facts. Under normal circumstances, there is no need for specificity in pleading evidentiary facts. However, bare conclusions of law are insufficient. Code Civ. Proc. §§ 425.10(a), 459; *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 531, 549-50; *Zelig v. County of Los Angeles* (2002) 27 Cal. 4th 1112, 1126; *Doheny Park Terrace HOA v. Truck Ins. Exchange* (2005) 132 Cal. App. 4th 1076, 1098-99; *Berger v. California Insurance Guarantee Assn* (2005) 128 Cal. App. 4th 989, 1006.

Discussion

Res Judicata/Collateral Estoppel

The doctrine of retraxit finds its roots in the common law. At common law, a “retraxit” was “an open and voluntary renunciation of the suit in open court.” *Ghiringhelli v. Riboni* (1950) 95 Cal.App.2d 503, 506; *see also Westbay v. Gray* (1897) 116 Cal. 660, 666. The primary features of a common law retraxit were that it was made by the plaintiff in person and in open court. *Roybal v. University Ford* (1989) 207 Cal.App.3d 1080, 1086. A dismissal with prejudice is the modern name for a common law retraxit. *Robinson v. Hiles* (1953) 119 Cal.App.2d 666, 672; *Lama v. Comcast Cablevision* (1993) 14 Cal.App.4th 59, 64.

“[A] dismissal with prejudice is the equivalent of a final judgment on the merits, barring the entire cause of action.” *Boeken v. Philip Morris USA, Inc.* (2010) 48 Cal.4th 788, 793. This is true even when there was no settlement or agreement. Here, Plaintiff alleges there was no settlement, only coercion. [FAC, ¶ 14.] “[A] dismissal with prejudice [is] a retraxit constituting a decision on the merits invoking the principles of res judicata.” *Torrey Pines Bank v. Superior Court* (1989) 216 Cal.App.3d 813, 822.

Code of Civil Procedure section 1908 codifies the res judicata doctrine, and provides that “a judgment or final order in an action or special proceeding” is conclusive as to “the matter directly adjudged.” *Id.* at subd. (a)(2). “Res judicata, or claim preclusion, prevents relitigation of the same cause of action in a second suit between the

same parties or parties in privity with them.” *Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 896–897.

The doctrine applies when (1) the issues decided in the prior adjudication are identical with those presented in the later action; (2) there was a final judgment on the merits in the prior action; and (3) the party against whom the plea is raised was a party or was in privity with a party to the prior adjudication. *Pollock v. University of Southern California* (2003) 112 Cal.App.4th 1416, 1427.

“ ‘The doctrine of res judicata rests upon the ground that the party to be affected ... has litigated, or *had an opportunity* to litigate the same matter in a former action in a court of competent jurisdiction, and should not be permitted to litigate it again to the harassment and vexation of his opponent. Public policy and the interest of the litigants alike require that there be an end to litigation.’ ” *Fairchild v. Bank of America* (1958) 165 Cal.App.2d 477, 482 (emphasis added).

Claim preclusion and res judicata apply to a pending proceeding only when a prior adjudication resolved, or could have resolved, the same cause of action pending in the current proceeding. *Brenelli Amedeo, S.P.A. v. Bakara Furniture, Inc.* (1994) 29 Cal.App.4th 1828, 1835.

To determine whether the same cause of action is involved, California courts apply the “primary rights” theory. *Id.* The “firmly settled rule in California for determining a cause of action is the primary rights theory.... ‘ “...Under this theory, the underlying right sought to be enforced determines the cause of action. In determining the primary right, ‘the significant factor is the harm suffered.’ ” ‘ ” *Id.* at 1835–1836. A “plaintiff’s primary right is defined by *the legally protected interest* which is harmed by defendant’s wrongful act, and is not necessarily coextensive with the *consequence* of that wrongful act.” *Henderson v. Newport–Mesa Unified School Dist.* (2013) 214 Cal.App.4th 478, 499. Thus, because breaching a contract inflicts harm on a legally protected interest different from tortious conduct that renders uncollectable a judgment arising from the breach of contract, two different primary rights arise. *Fujifilm Corp. v. Yang* (2014) 223 Cal.App.4th 326, 331–332.

Since a retraxit “invok[es] the principles of res judicata,” it of course follows that a retraxit only bars claims dismissed with prejudice between the same parties or their privies. *Datta v. Staab* (1959) 173 Cal.App.2d 613, 621 (“ ‘A retraxit is equivalent to a verdict and judgment on the merits of the case and is deemed to be a bar to another suit for the same cause *between the same parties*.... ’ ”) (italics added.); *Torrey Pines Bank v. Superior Court*, 216 Cal.App.3d at 820

(“A retraxit is equivalent to a judgment on the merits and as such bars further litigation on the same subject matter between the parties.”); *Moradi-Shalal v. Fireman’s Fund Ins. Companies* (1988) 46 Cal.3d 287, 312 (“ ‘ ‘ ‘Where the parties to an action settle their dispute and agree to a dismissal, it is a retraxit and amounts to a decision on the merits and as such is a bar to further litigation on the same subject matter between the parties ’ ’ ‘ ”).

There are very limited exceptions to the rules of claim and issue preclusion based on public policy or manifest injustice. “[M]anifest injustice and public interest exceptions are extremely narrow and have never enjoyed wide approval or frequent application.” *Schneider v. Lane* (2024) 107 Cal.App.5th 39, 48 (citation and internal quote marks omitted).

[A] general demurrer lies where the facts alleged in the complaint or matters judicially noticed show that plaintiff is seeking relief from the same defendant on the same cause of action as in a prior action, or is asserting an issue decided against plaintiff in the prior action. [*Boeken v. Philip Morris USA, Inc.* (2010) 48 C4th 788, 792, 108 CR3d 806, 808—plaintiff’s wrongful death action barred by her prior voluntary dismissal of loss of consortium action against same defendant; *Gabriel v. Wells Fargo Bank, N.A.* (2010) 188 CA4th 547, 556, 115 CR3d 622, 630—complaint barred by collateral estoppel; *Proctor v. Vishay Intertechnology, Inc.* (2013) 213 CA4th 1258, 1270-1271, 152 CR3d 914, 923—action barred by collateral estoppel subject to demurrer even if issue wrongly decided in first action; *Shine v. Williams-Sonoma, Inc.* (2018) 23 CA5th 1070, 1076-1077, 233 CR3d 676, 681—court properly took judicial notice of “pleading, settlement agreement, and stipulated judgment of dismissal” in earlier class action to sustain demurrer on res judicata grounds in new class action]

Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-A §7:60.9

Defendant’s contention is that Plaintiff’s current complaint is barred by his prior complaint and dismissal. To the extent Plaintiff contends he was induced by extrinsic fraud to dismiss his prior case, that issue

was settled with the court's denial of Plaintiff's motion to vacate the dismissal of the prior action with a finding that the fraud he asserts is intrinsic fraud. Accordingly, claim preclusion applies.

As alleged, Plaintiff's first through fifth causes of action are expressly based on conduct and representations leading up to the dismissal of the prior action and are tied to the merits of that action as noted by the court there. [See prior action, ROA #47 at 2.] This is intrinsic fraud and not the basis for a separate action. *Heyman v. Franchise Mortgage Acceptance Corp.* (2003) 107 Cal.App.4th 921, 926 ("The trial court here correctly concluded the alleged fraud of Knyal in securing Heyman's dismissal of the 1992 action through misleading statements about the value of FMAC (or of the loan servicing rights) was *intrinsic*.").

Plaintiff's sixth and seventh cause of action are expressly based on conduct that took place *after* dismissal of the prior action. They are therefore not barred by claim preclusion. They are discussed below.

But it is not clear that claim preclusion would apply to Plaintiff's claim for interference with prospective economic advantage – especially to the extent it is based on Defendant's alleged conduct *after* the dismissal. [See FAC, ¶ 15, 10.d.] The same would be true for the remaining causes of action.

Remaining Causes of Action

Defendant argues all the causes of action are barred by the litigation under Civil Code section 47. "[T]he litigation 'privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action.'" *Seltzer v. Barnes* (2010) 182 Cal.App.4th 953, 970. The litigation privilege has been held to apply to statement made during negotiations to settle a lawsuit. *Id.* Nothing in the SAC reflects unequivocally that any of the alleged statements were part of negotiations to settle the prior case. This is especially true for anything that was said or took place after dismissal of the prior action. What settlement negotiations would be necessary at that point?

Fifth Cause of Action for Intentional Interference with Prospective Economic Advantage

The elements of a cause of action for intentional interference with prospective economic advantage are: (1) an economic relationship between the plaintiff and some third party, with a reasonable probability of future economic benefit or advantage to the plaintiff; (2) the defendant's knowledge of the relationship; (3) intentional acts on the part of the defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the acts of the defendant. *Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal. 4th 1134, 1153; *Plummer v. Day/Eisenberg* (2010) 184 Cal. App. 4th 38, 51.

To recover for interference with prospective economic advantage, a plaintiff must plead and prove the defendant's interference was wrongful by some measure beyond the fact of the interference itself. *Della Penna v. Toyota Motor Sales, U.S.A., Inc.* (1995) 11 Cal. 4th 376, 392-393; *National Medical Transportation Network v. Deloitte & Touche* (1998) 62 Cal. App.4th 412, 440. Wrongful conduct is insufficient if it is merely unfair or immoral or the product of an improper but lawful purpose. Rather, an act is independently wrongful if it is unlawful, that is, if it is proscribed by some constitutional, statutory, regulatory, common law, or other determinable legal standard. *Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal. 4th 1134, 1159.

Plaintiff alleges that independently wrongful acts that interfered with his sale took place after dismissal, but the only factual allege is that Defendant acted wrongfully by “continuing to delay, obstruct, and withhold lease approval, despite having conditioned approval on the dismissal and despite knowing that Plaintiff dismissed the lawsuit for the sole purpose of allowing the sale to proceed.” [SAC, intro to sixth cause of action and ¶ 110.]

This is breach of contract. Generally speaking, and without more, breach of contract is not an independently wrongful act for purposes of interference liability. *Drink Tank Ventures LLC v. Real Soda in Real Bottles, Ltd.* (2021) 71 Cal.App.5th 528, 539–540.

For this reason, the demurrer to the sixth cause of action is sustained.

Seventh Cause of Action for Unfair Business Practices

B&P § 17200 *et seq.* (“UCL”) prohibits unfair competition, including unlawful, unfair or fraudulent business acts. *Cel-Tech Comm., Inc. v. Los Angeles Cellular Tele. Co.* (1999) 20 Cal.4th 163, 180. A UCL action is equitable in nature and damages cannot be recovered. *Id.* at

		179-80. It requires a person to have suffered injury in fact and have lost money or property as a result of unfair competition in order to have standing for a UCL cause of action. <i>Pfizer Inc. v. Superior Court</i> (2010) 182 Cal.App.4th 622, 630. In <i>Korea Supply Co. v. Lockheed Martin Corp.</i>, the California Supreme Court ruled that restitution is a remedy for violation of section 17200 but “nonrestitutionary disgorgement,” which is akin to damages, is not. <i>Id.</i>, 29 Cal. 4th at 1144-51. “In the context of the UCL, ‘restitution’ is limited to the return of property of funds in which plaintiff has an ownership interest (or is claiming through someone with an ownership interest).” <i>Madrid v. Perot Systems Corp.</i> (2005) 130 Cal.App.4th 440, 453. “Thus, the California Supreme Court has defined a UCL order for restitution as one ‘compelling a UCL defendant to return money obtained through an unfair business practice to those persons in interest from whom the property was taken, that is, to persons who had an ownership interest in the property or those claiming through that person.’” <i>Id.</i> “The California Supreme Court has held that, while <i>restitutionary</i> disgorgement [of profits] may be an available remedy under the UCL, <i>nonrestitutionary</i> disgorgement [of profits] is <i>not</i> available in a UCL individual action or in a UCL <i>representative</i> action....” <i>Id.</i> at 460. Here, Plaintiff has not alleged that Defendant holds property or funds that Plaintiff has an ownership interest in. Rather, he seeks his “economic loss.” [SAC, ¶ 125.] He calls this restitution, but it is not. [<i>Id.</i>] In his prayer, Plaintiff prays for injunctive relief but he does not allege ongoing conduct that would give rise to the need for or right to an injunction. For this reason, the demurrer to this cause of action is sustained. Case Management Conference Continued to August 10, 2026 at 9:00 a.m.
4	Kim vs. Kim 2024-01376224	1. Motion for Protective Order 2. Motion to Compel Deposition (Oral or Written) 3. Order to Show Cause re: Monetary Sanctions Off Calendar

5	Lopez vs. Trans Pak, Inc. 2024-01437506	1. Motion to Compel Further Responses to Form Interrogatories 2. Motion to Compel Further Responses to Form Interrogatories Continued to 09/14/2026
6	McPherson vs. Donald & Lynn Southard, LLC 2025-01494975	Demurrer to Complaint Continued to 08/24/2026
7	Menon vs. Memorial Care Saddleback Medical Center 2024-01379144	1. Motion for Summary Judgment and/or Adjudication Defendant Robert Day, M.D.'s ("Defendant") Motion for Summary Judgment is granted. Plaintiffs Parvathi Devi Geetha Devi and Shreejith Menon, individually, and as the guardian ad litem of Krishna Menon ("Minor," collectively, "Plaintiffs"), assert causes of action for medical negligence and negligent infliction of emotional distress against Defendant. With respect to the moving defendant, Plaintiffs allege Defendant was negligent in the "prenatal, labor and delivery and post-delivery care of" Minor and Devi; that Minor "suffered severe and irreversible brain damage and additional physical injuries that currently require daily dialysis treatments and a feeding tube on year post-birth"; and, Devi "suffered severe pain, suffering, and emotional distress." (Compl. at pp. 4-5, ¶ GN-1.) Under their fourth cause of action for negligent infliction of emotional distress, Devi and Menon allege they are "entitled to recover for this emotional distress" pursuant to Thing v. La Chusa (1989) 48 Cal. 3d 644." (Compl. at p. 7, ¶ GN-1.) Defendant moves for summary judgment as to every negligence claim against him on the grounds that: [1] he at all times complied with the applicable standard of care; [2] his conduct was not a substantial factor in causing any of the alleged damages; and, [3] a bystander theory of negligent infliction of emotional distress fails without the existence of any underlying, independently actionable tort. (ROA 83 [Not. of Mot. at p. 2].) Summary Judgment Standard "[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . ." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) "A prima facie

showing is one that is sufficient to support the position of the party in question.” (Id. at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (FPI Development v. Nakashima (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; 580 Folsom Associates v. Prometheus Development Co. (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (Doe v. Salesian Society (2008) 159 Cal.App.4th 474, 481; Bushling v. Fremont Med. Center (2004) 117 Cal.App.4th 493, 510.)

Medical Negligence Claims

“The elements of a cause of action for medical malpractice are: (1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage.” (San Antonio Regional Hospital v. Superior Court (2024) 102 Cal.App.5th 346, 350, citing Johnson v. Superior Court (2006) 143 Cal.App.4th 297, 305.) “The first element, standard of care, is the key issue in a malpractice action and can only be proved by expert testimony, unless the circumstances are such that the required conduct is within the layperson's common knowledge.” (Ibid., citing Lattimore v. Dickey (2015) 239 Cal.App.4th 959, 968.) “Proving the third element, causation, also requires “ ‘competent expert testimony.’ ” (Ibid., Miranda v. Bomel Construction Co., Inc. (2010) 187 Cal.App.4th 1326, 1336.)

“An expert declaration is admissible to support or defeat summary judgment if the expert’s testimony would be admissible at trial in accordance with Evidence Code section 720.” (Bozzi v. Nordstrom, Inc. (2010) 186 Cal.App.4th 755, 761.) Per Evidence Code section 720, “[a] person is qualified to testify as an expert if he has special

knowledge, skill, experience, training, or education sufficient to qualify him as an expert on the subject to which his testimony relates.” (Evid. Code, § 720, subd. (a).) The expert declaration must disclose the matters relied on in forming its opinion. (See *Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 524.) The matter relied on must, itself, be properly authenticated and placed before the court. (*Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, 743; accord *Shugart v. Regents of University of California* (2011) 199 Cal.App.4th 499, 505.)

Here, Defendant has provided a declaration from Roy Z. Mansano, M.D. (ROA 84.) Dr. Mansano attests he is a physician licensed to practice medicine in the State of California and is currently in private practice in the San Fernando Valley. He is board-certified in obstetrics and gynecology as well as maternal fetal medicine. (Mansano Decl. at ¶¶ 1-2.) In preparing his declaration he reviewed the materials that were submitted in connection with this motion, including Mother’s and Minor’s medical records. (Mansano Decl. at ¶ 5.)

Dr. Mansano opines, in relevant part, that: “Based upon my review of the above-delineated medical records, as well as my education, training, and experience, it is my opinion, to a reasonable degree of medical probability, that Dr. Day complied with the standard of care in his care and treatment of plaintiff throughout her pregnancy. He provided appropriate counseling, prenatal care, and timely monitoring, and there was no indication of placental abruption or other complications requiring earlier intervention.” (Mansano Decl. at ¶ 12.)

Dr. Mansano further states, “it is also my opinion that, to a reasonable degree of medical probability, Dr. Day did not cause or contribute to any delayed delivery or adverse outcome, including [Minor’s] NICU admission and subsequent diagnosis of mild hypoxic ischemic encephalopathy secondary to placental abruption because on November 28, 2022 upon examination there were no signs or symptoms of placental abruption or other anomalies requiring delivery.” (Mansano Decl. at ¶ 14.)

Plaintiffs did not submit any objections to this testimony. Based on the foregoing, the Court finds Defendant met his initial burden of showing that the care provided to Minor and Devi were, to a reasonable degree of medical probability, within the applicable standard of care in the community, and that no negligent act or omission by Defendant was a substantial factor in causing the alleged damages.

Negligent Infliction of Emotional Distress Claim

“Negligent infliction of emotional distress “ ‘is not an independent tort, but the tort of negligence,’ ” to which “ ‘traditional elements of duty, breach of duty, causation, and damages apply.’ ” (Downey v. City of Riverside (2024) 16 Cal.5th 539, 547, citation omitted.) In other words, a bystander’s claim for negligent infliction of emotional distress depends upon the existence of an act of negligence that caused injury to the victim. (Thing v. La Chusa (1989) 48 Cal.3d 644, 647 [“It is in that context that we consider the appropriate application of the concept of ‘duty’ in an area that has long divided this court— recognition of the right of persons, whose only injury is emotional distress, to recover damages when that distress is caused by knowledge of the injury to a third person caused by the defendant’s negligence”] [emphasis added].)

Because Defendant has met his initial burden on the medial negligence claims, Plaintiffs’ bystander theory of recovery under Thing v. La Chusa, which is based on witnessing a “negligent injury” to Minor, also fails absent a triable issue of fact on the negligence claim.

Request for Continuance

“If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just.” Alternatively, the motion “may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due. (Code Civ. Proc., § 437c, subd. (h).)

“A declaration in support of a request for continuance under section 437c, subdivision (h) must show: “(1) the facts to be obtained are essential to opposing the motion; (2) there is reason to believe such facts may exist; and (3) the reasons why additional time is needed to obtain these facts. (Cooksey v. Alexakis (2004) 123 Cal.App.4th 246, 254.) The party requesting a continuance does not need to show that the evidence does exist, but it must show that it may exist. Further, the supporting affidavit or declaration “must detail the specific facts that would show the existence of controverting evidence.” (Granadino v. Wells Fargo Bank, N.A. (2015) 236 Cal.App.4th 411, 420.) If this showing is made, then the continuance is “virtually mandated.” (Dee v. Vintage Petroleum, Inc. (2003) 106 Cal.App.4th 30, 34, citation omitted.) “Continuance of a summary judgment hearing is not mandatory, however, when no affidavit is submitted or when the submitted affidavit fails to make the necessary showing

		under section 437c, subdivision (h).” (Cooksey v. Alexakis (2004) 123 Cal.App.4th 246, 254.) Here, the Court finds Plaintiffs have not made the showing required under CCP section 437c(h), for their requested continuance of 120 days. Plaintiffs have not shown that the evidence necessary to defeat this motion may exist. In his declaration, Menon states: “We are not asking for this continuance because we are seeking to delay the resolution of this case. We are asking because we have been placed in an impossible position through no fault of our own. Our counsel has informed us that he cannot find an expert willing to support liability, but we believe the evidence tells a different story. We need time to find an attorney who can present that evidence properly. (ROA 153 [Menon Decl. at ¶ 13].) The Court notes this action was filed in February 2024 (i.e., more than two years ago). Defendant’s counsel attests that no written discovery has been served by Plaintiffs, nor have they noticed the depositions of any defendant or witnesses. (ROA 165 [Bunch Decl. at ¶ 4].) Plaintiffs’ counsel’s (recent) request to withdraw does not explain why opposing evidence could not have been obtained in the more than two years since this action was filed, or the months since this motion was filed. The Court notes that Plaintiffs submitted “supplemental declarations” on 6/5/26 (ROA 169), but the Court need not consider these tardy declaration because Plaintiffs have not shown good cause. Further, the supplemental declarations do not raise a triable issue of material fact. For the foregoing reasons, Defendant Day’s motion for summary judgment is granted; Plaintiffs’ request for a continuance is denied. Defendant is ordered to give notice of the ruling.
8	Mohan vs. USC Developers LLC 2026-01562032	Motion to Expunge Mechanics Lien The court will hear argument.
9	Niguel Summit Community Association vs. Pacific Island Village III Homeowners Association, Inc.	Demurrer to Complaint / Motion to Strike Complaint The Court sustains Defendant Monarch Summit I Homeowners Association’s Demurrer to the second cause of action for negligence per se in Plaintiff Niguel Summit Community Association’s Complaint. The remainder of the Demurrer is overruled. <u>Merits</u>

2024-01443810	Plaintiff Niguel Summit Community Association sues Defendants Pacific Island Village III Homeowners Association Inc. and Monarch Summit I Homeowners Association for: 1. Negligence 2. Negligence per se 3. Trespass 4. Nuisance 5. Breach of governing documents Plaintiff has dismissed the fifth cause of action. (ROA 46.) <u>Negligence</u> Plaintiff alleges that defendants Pacific Island and Monarch Summit negligently maintained, repaired, and replaced property, including but not limited to improvements and drainage (“PI and MS Common Areas”) that is adjacent to Plaintiff’s Common Areas. (Compl., ¶¶5, 15.) Plaintiff then alleges that as a result of the work done by Defendants on their own property, Plaintiff’s Common Area was inundated with water, mud, and debris. (FAC, ¶16.) A complaint for damages for negligent injury to person or property must allege: (1) defendant's legal duty of care toward plaintiff; (2) defendant's breach of duty, i.e., the negligent act or omission; (3) injury to plaintiff as a result of the breach, i.e., proximate or legal cause; and (4) damage to plaintiff. (See 4 Witkin, Cal. Procedure. (<i>Pultz v. Holgerson</i> (1986) 184 Cal.App.3d 1110, 1116–1117.) A property owner may use his or her land for any lawful purpose, provided the owner exercises ordinary care and skill to prevent injury to adjacent owners. (<i>Haehlen v. Wilson</i> (1936) 11 Cal. App. 2d 437, 441.) Defendant argues that there are insufficient allegations as to specifically what it did to cause Plaintiff’s Common Area to be flooded with water and debris. The Court disagrees. The Complaint alleges that “Defendants knew or should have known that if the drainage course controlled by Defendants was altered and not maintained, the drainage course, including the ditches, drains, and culverts would not function and the water would overtop, overflow, flood and discharge onto Plaintiff’s Common Area, and further, said water, mud, and debris
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would enter upon and damage Plaintiff's Common Area as alleged herein." (Compl., ¶15.)

An allegation of negligent management and maintenance of property is sufficient for pleading purposes. (*Pultz, supra*, 1116–1117.)

Thus, the allegations are sufficient. The Demurrer to the first cause of action is overruled.

Negligence Per Se

The doctrine of negligence per se is *not* a separate cause of action, but creates an evidentiary presumption that affects the standard of care in a cause of action for negligence. ([*Millard v. Biosources, Inc.*, \(2007\) 156 Cal.App.4th 1338](#), fn. 2.)

Further, Plaintiff does not actually allege any statute or law that was violated.

Plaintiff's Complaint alleges that (Complaint, ¶ 22) there are "laws, statutes, and regulations which require Defendants to take action prevent discharge of water and water runoff from property they have the duty to maintain, repair or replace," but the Complaint makes no mention of the specific statutes or regulations that creates a statutory duty.

Thus, the Demurrer to the second cause of action is sustained.

Trespass

The Complaint alleges that water overflowed and flooded Plaintiff's Common Area from Defendant's property. (Compl. ¶28.) The Complaint further alleges that "the acts and omissions of Defendants as alleged create a threat of future flooding, overtopping, overflow, and discharge of water, mud, and debris so as to obstruct Plaintiff's use of Plaintiff's Common Area." (Compl., ¶29.)

" 'Trespass is an unlawful interference with possession of property.' The elements of trespass are: (1) the plaintiff's ownership or control of the property; (2) the defendant's intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant's conduct was a substantial factor in causing the harm. (See CACI No. 2000.)" (*Ralphs Grocery Co. v. Victory Consultants, Inc.* (2017) 17 Cal.App.5th 245, 261–262, internal citation omitted.)

Defendant argues that the allegations are insufficient to show *how* Defendant trespassed. But the Complaint says that Defendant negligently allowed water intrusion. This is sufficient to state a claim.

The Demurrer to the third cause of action is overruled.

Nuisance

Plaintiff alleges that Defendant failed to properly control, maintain, repair, or replace water flow from its property, which lead to overflow, overtopping, flooding and discharge of water, mud, and debris, causing damage to Plaintiff's property. (Compl., ¶30.)

"[T]he essence of a private nuisance is its interference with the use and enjoyment of land. The activity in issue must 'disturb or prevent the comfortable enjoyment of property,' such as smoke from an asphalt mixing plant, noise and odors from the operation of a refreshment stand, or the noise and vibration of machinery." (*Oliver v. AT&T Wireless Services* (1999) 76 Cal.App.4th 521, 534, internal citations omitted; CACI 2021.)

Defendant argues that the Complaint does not specify how Plaintiff's property was damaged nor what repairs, if any, Plaintiff made to remedy the condition after Defendants allegedly failed to repair the condition. But this level of detail is not required at the pleadings stage and is property left to discovery.

The Demurrer to the fourth cause of action is overruled.

A. Motion to Strike Attorney's Fees

The Court grants Defendant Monarch Summit I Homeowners Association's Motion to strike attorney's fees alleged in Plaintiff Niguel Summit Community Association's Complaint.

Code of Civil Procedure § 1021 codifies the "American rule" that each party must bear the expense of its own attorney's fees. 14 Cal.5th at 417. (*Java Oil Ltd. v Sullivan* (2008) 168 Cal.App.4th 1178, 1189–1192 (California courts may enforce foreign money judgments that automatically award attorney's fees to successful litigant, e.g., under "English rule" that generally requires loser to pay winner's attorney's fees; these awards are not contrary to California public policy).

		Here, Plaintiff alleges no agreement with Defendant that provides for attorney's fees nor does Plaintiff cite to a statute that could provide for attorney's fees to the prevailing party. Thus, requests for attorney's fees are stricken. <u>Leave to Amend</u> The Court grants Plaintiff 15 days leave to amend the second cause of action and the claim for attorney's fees. Moving Defendant is ordered to serve notice. Case Management Conference Continued to August 10, 2026 at 9:00 a.m.
10	Nystul vs. Airborne Systems North America of CA, Inc. 2024-01374494	Motion for Summary Judgment and/or Adjudication Motion for Summary Judgment, or in the Alternative, Summary Adjudication Defendants Airborne Systems North America of CA, Inc. (Airborne Systems") and TransDigm Inc. ("TransDigm") (collectively, "Defendants") seek summary judgment on the Complaint filed by Plaintiff Michelle Nystul ("Plaintiff"). Defendants alternatively seek summary adjudication on eight issues. As an initial matter, the Court notes the parties did not comply with CCP section 1013b. No objections were made to service. The Court reminds the parties of their obligation to comply with CCP section 1013b when electronically serving documents. The Court declines to consider Defendants' reply evidence, supplemental reply evidence, reply separate statement, and supplemental reply separate statement. (Code Civ. Proc., § 437c, subd. (b)(4).) <u>General legal authority</u> In both summary judgment and summary adjudication proceedings, the pleadings determine the scope of the relevant issues. (<i>Port Medical Wellness, Inc. v. Connecticut General Life Ins. Co.</i> (2018) 24 Cal.App.5th 153, 169.) The standard governing motions for summary judgment and summary adjudication is settled. "[F]rom commencement to

conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (*Ibid.*) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.) “A court identifies the issues framed by the pleadings, determines whether the moving party’s showing has established facts which negate the opponent’s claim and justify a judgment in the moving party’s favor, and if the summary judgment motion is meritorious on its face, the court will look to whether the opposition demonstrates there are triable, material factual issues.” (*Clark v. Baxter Healthcare Corp.* (2000) 83 Cal.App.4th 1048, 1054.) The opposing party must show by reference to specific facts the existence of a triable issue as to that cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.)

“A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

A cause of action cannot be established if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. (*Brantley v. Pisaro* (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action cannot be established by submitting evidence, such as discovery admissions and responses, that plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at pp. 854-855; *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff’s lack of evidence by factually devoid discovery responses after plaintiff has had

adequate opportunity for discovery]; see *Sheiding v. Dinwiddie Constr. Co.* (1999) 69 Cal.App.4th 64, 80-81 [finding Union Bank rule only applies where discovery requests are broad enough to elicit all such information].)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

Merits

The Court notes although Defendants contend TransDigm is not Plaintiff's employer, Defendants did not request the Court determine this issue in the notice of motion or separate statement. Accordingly, the Court declines to address Defendants' contention in this motion.

Issue 1: Plaintiff's First Cause of Action for alleged Retaliation in Violation of California's Fair Employment and Housing Act ("FEHA") fails as a matter of law because Plaintiff cannot establish a *prima facie* case for retaliation because there is no causal link between Plaintiff's alleged protected activity of making complaints about Kip Freeman and her refusal to reclassify employees, and any of Defendants' alleged adverse employment actions towards her that allegedly occurred well after Freeman's cessation of employment.

The elements of a cause of action for retaliation are: (1) the employee engaged in protected activity, (2) the employee was subjected to an adverse employment action, and (3) a causal link exists between the protected activity and the adverse employment action. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.)

"[R]etaliatory intent is an element of a FEHA retaliation claim" (*Joaquin v. City of Los Angeles* (2012) 202 Cal.App.4th 1207, 1221.)

"[T]he proper standard for defining an adverse employment action is the 'materiality' test, a standard that requires an employer's adverse action to materially affect the terms and conditions of

employment...in determining whether an employee has been subjected to treatment that materially affects the terms and conditions of employment, it is appropriate to consider the totality of the circumstances and to apply the 'continuing violation' doctrine." (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1036.) "The FEHA standard for 'adverse action' is the *same* for both discrimination and retaliation claims: '(A)lthough an adverse employment action must materially affect the terms, conditions, or privileges of employment ..., whether a particular action or course of conduct rises to the level of actionable conduct should take into account the *unique circumstances* of the affected employee as well as the *workplace context* of the claim.' [*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 C4th 1028, 1052, 32 CR3d 436, 453 (emphasis added)]." (Chin, *et al.*, Cal. Prac. Guide Employment Litigation (The Rutter Group 2017) ¶ 7:393.21.)

In the context of an employer's motion for summary judgment, the *McDonnell Douglas* three-stage burden shifting test for a retaliation claim is treated the same as a discrimination claim. (*Batarse v. Service Employees Internat. Union, Local 1000* (2012) 209 Cal.App.4th 820, 831; see *Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.)

Therefore, an employer pursuing summary judgment may attempt to show the employee is unable to establish a *prima facie* case of discrimination or, alternatively, may skip to the second stage and demonstrate the employer had a legitimate business reason, unrelated to discrimination, for taking the adverse employment action. (*Batarse*, 209 Cal.App.4th at 832.)

For trial purposes, "the *McDonnell Douglas* test places on the plaintiff the initial burden to establish a *prima facie* case of discrimination...Generally, the plaintiff must provide evidence that (1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive...If, at trial, the plaintiff establishes a *prima facie* case, a presumption of discrimination arises...the burden shifts to the employer to rebut the presumption by producing admissible evidence, sufficient to 'raise [] a genuine issue of fact' and to 'justify a judgment for the [employer],' that its action was taken for a legitimate, nondiscriminatory reason... If the employer sustains this burden, the presumption of discrimination disappears...The plaintiff must then have the

opportunity to attack the employer's proffered reasons as pretexts for discrimination, or to offer any other evidence of discriminatory motive." (*Guz*, 24 Cal.4th at 354-356.)

For summary judgment proceedings, if an "employer presents admissible evidence either that one or more of plaintiff's prima facie elements is lacking, or that the adverse employment action was based on legitimate, nondiscriminatory factors, the employer will be entitled to summary judgment *unless the plaintiff produces admissible evidence which raises a triable issue of fact material to the defendant's showing.*" (*Sandell v. Taylor-Listug, Inc.* (2010) 188 Cal.App.4th 297, 309; see *King v. United Parcel Service, Inc.* (2007) 152 Cal.App.4th 426, 432-434 [The employer bears the "initial burden of demonstrating that at least one of the elements of plaintiff's employment discrimination claim is without merit. Once an employer satisfies its initial burden of proving the legitimacy of its reason for termination, the discharged employee seeking to avert summary judgment must present specific and substantial responsive evidence that the employer's evidence was in fact insufficient or that there is a triable issue of fact material to the employer's motive...In other words, plaintiff must produce substantial responsive evidence to show that [employer's] ostensible motive was pretextual; that is, 'that a discriminatory reason more likely motivated the employer or that the employer's explanation is unworthy of credence'"].)

An employee plaintiff's "prima facie burden is light; the evidence necessary to sustain the burden is minimal...generally an employee need only offer sufficient circumstantial evidence to give rise to a reasonable *inference* of discrimination." (*Sandell v. Taylor-Listug, Inc.*, 188 Cal.App.4th at 310.)

When the employer has produced substantial evidence of a legitimate, nondiscriminatory or nonretaliatory reason for the adverse employment action, the plaintiff's opposition to the motion must make a showing of intentional discrimination. (*Batarse v. Service Employees Internat. Union, Local 1000* (2012) 209 Cal.App.4th 820, 834.) The employee must offer evidence that (1) the employer's stated reason for the adverse employment action was untrue or pretextual, (2) the employer acted with a discriminatory animus, or (3) a combination of the two. (*Ibid.*) The employee's evidence cannot simply show the employer's decision was wrong, mistaken, or unwise. Rather, the employee must demonstrate such weaknesses, implausible inconsistencies, incoherencies, or contradictions in the

employer's proffered legitimate reasons for its action that a reasonable factfinder could rationally find them unworthy of credence, and thus infer that the employer did not act for the asserted nonretaliatory reasons. (*Ibid.*)

Defendants did not meet their initial burden to show there is no causal link between Plaintiff's alleged protected activity of making complaints about Kip Freeman and her refusal to reclassify employees. (Code Civ. Proc., § 437c, subd. (f)(1) ["A motion for summary adjudication shall be granted only if it completely disposes of a cause of action."]; see, *Hedayati v. Interinsurance Exchange of the Automobile Club* (2021) 67 Cal.App.5th 833, 846 ["If the defendant does not address an issue in a motion for summary judgment that has been raised in the plaintiff's complaint, it fails to meet its initial burden to show the plaintiff's action has no merit.].) Plaintiff's complaint does not allege her wrongful termination is the only adverse employment action or the only act of retaliation. (Complaint, ¶¶ 19, 20, 26, 29, 32, 34, 35, 41, 43, 46, and 48.) Although Defendants attempt to show they met their initial burden regarding other retaliatory acts, Defendants did not do so. By way of example, Defendants contend Plaintiff failed to provide any facts to support her allegation that Antanaitis failed to answer or return her calls, citing to Plaintiff's deposition transcript. (DMF No. 33.) However, the evidence Defendants cite do not support this contention. (DMF No. 33; Defendants' Compendium of Evidence, ROA No. 112, Askanas Decl., Exhibit B, 291:12-292:18.) Defendants also did not show Plaintiff cannot reasonably obtain evidence to support her contentions of retaliatory conduct. In addition, Plaintiff did not allege the only protected activity she engaged in was reporting Freeman's allegedly improper request to reclassify employees. (Complaint, ¶¶ 13-18, 22, 24, 27, and 41.)

Defendants did not show there is no causal link between Plaintiff's protected activity, which included more than just reporting Freeman, to the alleged retaliatory conduct, which included more than wrongful termination.

Even if Defendants met their initial burden, Plaintiff raised a triable issue of material fact as to whether Butrica or Antanaitis played any role in Blackburn's decision to eliminate Plaintiff's position. (Defendants' Material Fact ["DMF"] No. 46; Plaintiff's Compendium of Exhibits, Part 2 of 5, ROA No. 149, Exhibit O, 187:10-23 and 189:25-191:18.)

Accordingly, the motion for summary adjudication is denied.

Issue 2: Plaintiff's First Cause of Action for alleged Retaliation in Violation of the FEHA fails as a matter of law because Defendants' actions were taken for legitimate, non-retaliatory reasons and Plaintiff cannot show that those reasons were pretextual.

Defendants met their initial burden to show Defendants terminated Plaintiff for legitimate, non-retaliatory reasons. (DMF No. 42, 44, 47, and 48.)

Plaintiff met her shifted burden to show Defendants' motive was pretextual. Defendants' explanation was contradicted by Defendants' employees. Plaintiff raised a triable issue as to whether Butrica and Antanaitis played any role in Blackburn's decision to eliminate Plaintiff's position. (DMF No. 46 and 49; Plaintiff's Compendium of Exhibits, Part 2 of 5, Exhibit O, 187:10-23 and 189:25-191:18; Plaintiff's Compendium of Evidence, Part 4 of 5, Exhibit R, 265:20-266:23.) Accordingly, the motion for summary adjudication is denied.

Issue 3: Plaintiff's derivative Second Cause of Action for alleged Failure to Prevent Retaliation in Violation of the FEHA fails as a matter of law because Plaintiff's underlying FEHA Retaliation, Whistleblower Retaliation under California Labor Code section 1102.5, and Retaliation under California Labor Code section 232.5 claims all fail as a matter of law.

Plaintiff's second cause of action alleges Defendants failed to prevent retaliation in violation of FEHA. (Complaint, ¶ 52.)

"When a plaintiff seeks to recover damages based on a claim of failure to prevent discrimination or harassment she must show three essential elements: (1) plaintiff was subjected to discrimination, harassment or retaliation; (2) defendant failed to take all reasonable steps to prevent discrimination, harassment or retaliation, and (3) this failure caused plaintiff to suffer injury, damage, loss or harm. (Citation omitted.)" (*Lelaind v. City and County of San Francisco* (2008) 576 F.Supp.2d 1079, 1103.) There is no claim for failure to prevent harassment or discrimination when there is no liability for harassment or discrimination. (*Trujillo v. North Co. Transit Dist.* (1998) 63 Cal.App.4th 280, 289.)

Defendants met their initial burden to show Defendants terminated Plaintiff for legitimate, non-retaliatory reasons. (DMF No. 42, 44, 47, 48, and 50.) However, Plaintiff met her shifted burden to show Defendants' motive was pretextual and also raised a triable issue of material fact as to whether Butrica and Antanaitis played any role in Blackburn's decision to eliminate Plaintiff's position. (DMF No. 46 and 50; Plaintiff's Compendium of Exhibits, Part 2 of 5, Exhibit O, 187:10-23 and 189:25-191:18; Plaintiff's Compendium of Evidence, Part 4 of 5, Exhibit R, 265:20-266:23.) Because Defendants did not prevail on showing they are entitled to summary adjudication on Plaintiff's first cause of action retaliation under FEHA, Defendants' motion for summary adjudication on this issue is denied.

Issue 4: Plaintiff's Third Cause of Action for alleged Whistleblower Retaliation in violation of California Labor Code section 1102.5 fails as a matter of law because Plaintiff cannot establish, by a preponderance of the evidence, that her making complaints about Kip Freeman's conduct and her refusal to reclassify employees, was a contributing factor in Airborne Systems' decision to eliminate her position that occurred well after Freeman's cessation of employment.

Labor Code section 1102.5, subdivision (b) is California's general whistleblower statute. (*McVeigh v. Recology San Francisco* (2013) 213 Cal.App.4th 443, 468.) It provides:

An employer may not retaliate against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information, to a government or law enforcement agency, to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance, or for providing information to, or testifying before, any public body conducting an investigation, hearing, or inquiry, if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the employee's job duties.

(Lab. Code, § 1102.5, subd. (b).)

Labor Code section 1102.5, subdivision (c) provides, "An employer, or any person acting on behalf of the employer, shall not retaliate against an employee for refusing to participate in an activity that would result in a violation of state or federal statute, or a violation of

or noncompliance with a local, state, or federal rule or regulation.” (Lab. Code, § 1102.5, subd. (c).)

In 2003, the Legislature amended the Labor Code’s whistleblower protections, adding a procedural provision, section 1102.6. (*Lawson v. PPG Architectural Finishes, Inc.* (2022) 12 Cal.5th 703, 710-711.) Labor Code section 1102.6 states: “In a civil action or administrative proceeding brought pursuant to Section 1102.5, once it has been demonstrated by a preponderance of the evidence that an activity proscribed by Section 1102.5 was a contributing factor in the alleged prohibited action against the employee, the employer shall have the burden of proof to demonstrate by clear and convincing evidence that the alleged action would have occurred for legitimate, independent reasons even if the employee had not engaged in activities protected by Section 1102.5.” (Lab. Code, § 1102.6.)

In *Lawson v. PPG Architectural Finishes, Inc.*, the California Supreme Court clarified that “Section 1102.6 provides the governing framework for the presentation and evaluation of whistleblower retaliation claims brought under section 1102.5. First, it places the burden on the plaintiff to establish, by a preponderance of the evidence, that retaliation for an employee’s protected activities was a contributing factor in a contested employment action Once the plaintiff has made the required showing, the burden shifts to the employer to demonstrate, by clear and convincing evidence, that it would have taken the action in question for legitimate, independent reasons even had the plaintiff not engaged in protected activity.” (*Lawson v. PPG Architectural Finishes, Inc.*, *supra*, 12 Cal.5th at p. 718.) This standard governs Labor Code section 1102.5 claims on summary judgment. (*Id.* at pp. 717-718.)

The California Supreme Court held that an employee with a Labor Code section 1102.5 claim need not satisfy the three-part burden-shifting framework set forth in *McDonnell Douglas Corp. v. Green* (1973) 411 U.S. 792 (*McDonnell Douglas*). (*Lawson v. PPG Architectural Finishes, Inc.*, *supra*, 12 Cal.5th at p. 707.)

Defendants met their initial burden to show Plaintiff cannot show her making complaints about Freeman’s conduct and her refusal to classify employees was a contributing factor in Defendants’ decision to eliminate her position. (DMF No. 13, 16, 18, 21-24, 31, 41, 46, and 51.)

However, Plaintiff's complaint does not allege her wrongful termination is the only adverse employment action or the only act of retaliation. (Complaint, ¶¶ 19, 20, 26, 29, 32, 34, 35, 41, 43, 46, and 48.) Plaintiff did not allege the only protected activity she engaged in was reporting Freeman's allegedly improper request to reclassify employees. (Complaint, ¶¶ 13-18, 22, 24, 27, and 41.)

In addition, Plaintiff raised a triable issue of material fact as to whether Butrica or Antanaitis played any role in Blackburn's decision to eliminate Plaintiff's position. (DMF No. 46; Plaintiff's Compendium of Exhibits, Part 2 of 5, Exhibit O, 187:10-23 and 189:25-191:18.) Accordingly, the motion for summary adjudication is denied.

Issue 5: Plaintiff's Third Cause of Action for alleged Whistleblower Retaliation in Violation of California Labor Code section 1102.5 fails as a matter of law because Defendants can establish, by clear and convincing evidence, that Defendants eliminated Plaintiff's position for legitimate, non-retaliatory, and non-pretextual reasons.

Defendants met their initial burden to show Defendants terminated Plaintiff for legitimate, non-retaliatory reasons. (DMF No. 42, 44, 47, 48, and 52.) Plaintiff met her shifted burden to show Defendants' motive was pretextual and also raised a triable issue of material fact as to whether Butrica and Antanaitis played any role in Blackburn's decision to eliminate Plaintiff's position. (DMF No. 46 and 52; Plaintiff's Compendium of Exhibits, Part 2 of 5, Exhibit O, 187:10-23 and 189:25-191:18; Plaintiff's Compendium of Evidence, Part 4 of 5, Exhibit R, 265:20-266:23.) Accordingly, the motion for summary adjudication is denied.

Issue 6: Plaintiff's Fourth Cause of Action for Violation of California Labor Code section 232.5 fails as a matter of law because Plaintiff cannot establish that her alleged disclosure of her working conditions was a substantial motivating reason for Defendants' decision to eliminate her position.

Labor Code section 232.5 provides as follows:

No employer may do any of the following:

(a) Require, as a condition of employment, that an employee refrain from disclosing information about the employer's working conditions.

(b) Require an employee to sign a waiver or other document that purports to deny the employee the right to disclose information about the employer's working conditions.

(c) Discharge, formally discipline, or otherwise discriminate against an employee who discloses information about the employer's working conditions.

(d) This section is not intended to permit an employee to disclose proprietary information, trade secret information, or information that is otherwise subject to a legal privilege without the consent of his or her employer.

(Lab. Code, § 232.5.)

To prevail on this cause of action, Plaintiff would have to show "the disclosure of [her] working conditions was a 'substantial motivating reason' for terminating [her] employment." (*Zirpel v. Alki David Productions, Inc.* (2023) 93 Cal.App.5th 563, 578.)

Plaintiff's complaint alleges a violation of subdivision (c).

(Complaint, ¶ 72.) Plaintiff alleges she "repeatedly complained about certain working conditions and/or practices relating to the company's ongoing attempts to unlawfully reclassify certain positions within the company by changing the job descriptions of those positions, the retaliatory practices that occurred after Ms. Antanaitis' promotion to HR Director towards Plaintiff and others on the HR team in California and the internal failure to address Mr. Freeman's unlawful conduct at work that created a hostile work environment. Plaintiff therefore contends that the retaliatory campaign against her that culminated in the termination of her employment." (*Id.*, ¶ 73.)

Defendants met their initial burden to show that Plaintiff's complaints about Freeman's unlawful conduct was not a substantial motivating reason for terminating her employment. (DMF No. 13, 16, 18, 21-24, 31, 41, 46, and 53.)

However, Plaintiff's complaint does not allege her wrongful termination is the only adverse employment action or the only act of retaliation, although she does allege the retaliatory campaign culminated her termination. (Complaint, ¶¶ 19, 20, 26, 29, 32, 34, 35, 41, 43, 46, 48, 71, and 73.) Plaintiff did not allege the only protected activity she engaged in was reporting Freeman's allegedly improper request to reclassify employees. (Complaint, ¶¶ 13-18, 22, 24, 27, and 41.)

		Plaintiff raised a triable issue of material fact as to whether Butrica or Antanaitis played any role in Blackburn's decision to eliminate Plaintiff's position. (DMF No. 46 and 53; Plaintiff's Compendium of Exhibits, Part 2 of 5, Exhibit O, 187:10-23 and 189:25-191:18.) Accordingly, the motion for summary adjudication is denied. Issue 7: Plaintiff's Fourth Cause of Action for Violation of California Labor Code section 232.5 fails as a matter of law because Defendants can establish that they eliminated Plaintiff's position for legitimate, non-retaliatory, and non-pretextual reasons. Defendants met their initial burden to show Defendants terminated Plaintiff for legitimate, non-retaliatory reasons. (DMF No. 42, 44, 47, 48, and 54.) Plaintiff met her shifted burden to show Defendants' motive was pretextual and also raised a triable issue of material fact as to whether Butrica and Antanaitis played any role in Blackburn's decision to eliminate Plaintiff's position. (DMF No. 46 and 54; Plaintiff's Compendium of Exhibits, Part 2 of 5, Exhibit O, 187:10-23 and 189:25-191:18; Plaintiff's Compendium of Evidence, Part 4 of 5, Exhibit R, 265:20-266:23.) Accordingly, the motion for summary adjudication is denied. Issue 8: Plaintiff's derivative Fifth Cause of Action for Wrongful Termination in Violation of Public Policy fails as a matter of law because Plaintiff's underlying claims under the FEHA and California Labor Code claims (Plaintiff's First, Third, and Fourth Causes of Action) fail as a matter of law. For the reasons set forth above, Defendants did not show Plaintiff's underlying claims under FEHA and the Labor Code fail as a matter of law. Accordingly, the motion for summary adjudication on this issue is denied. Summary judgment For the reasons set forth below, Defendants' motion for summary judgment is denied. Plaintiff shall give notice.
11	Popal vs. Sajjadian 2024-01384261	1. Motion for Reconsideration 2. Motion to Vacate Withdrawn

12	S & L Medical Group, Inc. vs. Travelers Property Casualty Company of America 2024-01420585	Motion for Judgment on the Pleadings Defendant Joydan Group, LLC's unopposed motion for judgment on the pleadings as to Plaintiff S & L Medical Group, Inc.'s third cause of action for breach of contract is granted with 15 days leave to amend. Defendant's request for judicial notice is granted. A motion for judgment on the pleadings may be made, and granted, on the same grounds as a general demurrer. (<i>Stoops v. Abbassi</i> (2002) 100 Cal. App. 4th 644, 650; Code Civ. Proc. § 438(c)(1)(B)(ii).) As in with a demurrer, the grounds for judgment on the pleadings must appear on the face of the complaint or be based on facts that the court may judicially notice. (Code Civ. Proc. § 438(d).) Plaintiff alleges in the Complaint that on 10/29/00, it and Joydan entered into a written lease agreement. Plaintiff states that this agreement is attached as Ex. A to the Complaint and incorporated therein. (Complaint, ¶ 6.) Plaintiff alleges that subsequently, the lease was amended twice, referencing Exhibits B and C attached to the Complaint. (Complaint, ¶¶ 7, 8.) Plaintiff's Exhibit A is not a contract between Plaintiff and Joydan. Rather, it is a contract dated October 20, 2000 between Plaintiff and Anaheim Surgical Center, LLC. While Plaintiff attaches two amendments to the lease which do name Defendant as a party, these amendments are dependent on the original lease which is not included with Plaintiff's Complaint. Plaintiff did not oppose this motion. Accordingly, the motion for judgment on the pleadings is granted with leave to amend, as Plaintiff fails to allege a claim for breach of lease against Defendant Joydan. Defendant shall give notice.
13	Wilson vs. Dan 2025-01523063	Motion for Judgment on the Pleadings Continued to 6/29/2026